

		rights under the Ground Lease; and (3) What interest was transferred in the Lease. (¶21 of Cross-Complaint and Exhibit 4 thereto.) At the very least, as there is no legal distinction between EMS and the Trust which registered it as a fictitious business name, the Lease had the potential to transfer interests arising from partial ownership of the property. While the Opposition asserts “[t]he specific, well-pleaded facts here are that the Deckers Lease was granted by EMS as master tenant under the Ground Lease” (Opposition: 8:21-22), the above is not at all clear. Lastly, as the parties are in apparent agreement that the Second Cause of Action rises or falls with the First Cause of Action (See Opposition: 8:7-8), the demurrer to the Second Cause of Action is similarly sustained, with leave to amend, to allow greater clarification as to the actual controversy. Cross-Defendants to give notice.
14.	2025-1522979 Marquez vs. Mercedes-Benz USA LLC	The motion by Defendant House of Imports (“Repair Facility”) for judgment on the pleadings on the third cause of action for negligent repair alleged in the Complaint filed by Plaintiffs Humberto Marquez and Pauline A. Marquez (collectively, “Plaintiffs”) is granted. The elements for negligent repair are the same as the elements for negligence. (<i>See, Sabicer v. Ford Motor Company</i> (C.D. Cal. 2019) 362 F.Supp.3d 837, 840.) “The elements of negligence are duty, breach, causation, and damages. <i>Burgess v. Superior Court</i>, (1992) 2 Cal. 4th 1064, 1072. ‘One who undertakes repairs has a duty arising in tort to do them without negligence.’ <i>Sw. Forest Indus., Inc. v. Westinghouse Elec. Corp.</i>, 422 F.2d 1013, 1020 (9th Cir. 1970).” (<i>Id.</i>, at 840-841.) “Any individual, partnership, corporation, association, or other legal relationship which engages in the business of providing service or repair to new or used consumer goods has a duty to the purchaser to perform those services in a good and workmanlike manner.” (Civ. Code, § 1796.5.) Plaintiffs did not allege sufficient facts to state this cause of action. Plaintiffs only allege in a conclusory manner that Repair Facility’s “negligent breach of its duties owed to Plaintiffs were a proximate cause of Plaintiffs’ damages.” (Complaint, ¶ 54.) Accordingly, Repair Facility’s motion is granted with 30 days leave to amend. In light of the ruling above, the Court need not determine whether the third cause of action is barred by the economic loss rule as pled.

		Repair Facility shall give notice.
16.	2024-1408350 Guo vs. Je Beaute, Inc.	Continued from 06/10/2026.